Appeal Docket Sheet **Superior Court of Pennsylvania**

Docket Number: 1409 EDA 2024

April 24, 2026

CAPTION

In Re: Mitchell E. and Karlie M. Roth Irrevocable Trust

Appeal of: Miriam Roth

CASE INFORMATION

Initiating Document:	Notice of Appeal		
Case Status:	Decided/Active		
Case Processing Status:	April 9, 2026	Reconsideration/Reargument Filed	
Journal Number:	J-S44011-25		
Case Category:	Orphans' Court	Case Type(s):	Guardianship/Trusteeship

CONSOLIDATED CASES

RELATED CASES

Docket No / Reason	Type
3044 EDA 2025 Similar Issue(s)	Related

SCHEDULED EVENT

Next Event Type: Record Remitted — Next Event Due Date: May 1, 2026

Next Event Type: Reconsideration/Reargument Decision — Next Event Due Date: June 8, 2026

COUNSEL INFORMATION

Pro Se: Miriam Roth
Address: 3947 Lincoln Highway #210
Downingtown, PA 19335

Attorney: Perkins, Edward Lewis
Law Firm: Gibson & Perkins PC
Address: 100 W 6TH St Ste 204
Media, PA 19063-2431
Phone No: (610) 565-1708 Fax No:

Attorney: Timby, Walter J., III
Law Firm: Gibson & Perkins PC
Address: 100 W Sixth St Ste 204
Media, PA 19063-2431
Phone No: (610) 565-1708 Fax No:

FEE INFORMATION

Fee Dt	Fee Name	Fee Amt	Receipt Dt	Receipt No	Receipt Amt
05/31/2024	Notice of Appeal	90.25	05/31/2024	2024-SPR-E-000748	90.25
04/09/2026	Petition for Reargument	15.00	04/09/2026	2026-SPR-E-000524	15.00

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Appeal Docket Sheet **Superior Court of Pennsylvania**

Docket Number: 1409 EDA 2024

April 24, 2026

AGENCY/TRIAL COURT INFORMATION

Order Appealed From:	April 18, 2024	Notice of Appeal Filed:	May 20, 2024
Order Type:	Order Entered		
Documents Received:	May 30, 2024		

Court Below:	Delaware County Court of Common Pleas		
County:	Delaware	Division:	Delaware County Orphans' Court
Judge:	Durham, Kathrynann W.	OTN:	
Docket Number:	0444-2023	Judicial District:	32

ORIGINAL RECORD CONTENT

Original Record Item	Filed Date	Content Description
Original Record	September 23, 2024	
Trial Court Opinion	September 23, 2024	

Date of Remand of Record:

BRIEFING SCHEDULE

Appellant

Roth, Miriam

Brief

Due: November 4, 2024 Filed: July 3, 2025

Reply Brief

Due: September 12, 2025 Filed: September 15, 2025

Reproduced Record

Appellee

Perkins, Edward

Brief

Due: September 4, 2025 Filed: August 29, 2025

Supplemental Reproduced Record

Due: September 4, 2025 Filed: August 29, 2025

DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
May 30, 2024	Notice of Appeal Docketed	Appellant	Roth, Miriam
May 30, 2024	Docketing Statement Exited (Civil)		Santarelli, Letitia
June 5, 2024	Entry of Appearance - Private Perkins, Edward	Appellee	Timby, Walter J., III
June 5, 2024	Other Document Name: PROOF OF SERVICE	Appellee	Perkins, Edward
June 13, 2024	Docketing Statement Received (Civil)	Appellant	Roth, Miriam
August 5, 2024	Entry of Appearance - Private Perkins, Edward	Appellee	Timby, Walter J., III
August 22, 2024	Notice to Lower Court Regarding Delinquent Record		Superior Court of Pennsylvania

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
August 28, 2024	Jette Letter sent to Counsel		Superior Court of Pennsylvania
Comment:	Pro se mail received.		
September 9, 2024	Letter Received from Trial Judge Regarding Delinquent Record		Delaware County Orphans' Court
September 13, 2024	Application to Withdraw As Counsel Roth, Miriam	Appellant	Gray, Kenneth Edward
September 19, 2024	Application for Relief	Appellant	Roth, Miriam
September 23, 2024	Trial Court Record Received		Delaware County Orphans' Court
Document Name:	(PAPER)		
September 23, 2024	Trial Court Opinion Received		Delaware County Orphans' Court
September 23, 2024	Briefing Schedule Issued		Superior Court of Pennsylvania
October 7, 2024	Order Denying Application to Withdraw as Counsel		Per Curiam
Comment:	Upon consideration of the September 13, 2024, "Application to Withdraw as Counsel," filed by Kenneth E. Gray, Jr., Esq., and noting no response thereto, the application is DENIED without prejudice to Counsel's right to file a new application for leave to withdraw as counsel and serve it on Appellant Miriam Roth. Moreover, the Application to Withdraw references that Appellant "has communicated her desire in writing for us to withdraw," but no exhibits corroborating the claim are attached. September 13, 2024, Application at 3. The briefing schedule is STAYED pending further Order of this Court.		

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
October 10, 2024	Order		Per Curiam
Comment:	Upon consideration of the September 19, 2024, "Motion for Leave to File Amended 1925(b) Statement of Errors Complained of on Appeal," docketed as "Application for Relief," filed by Appellant Miriam Roth, and noting that Appellant is presently represented by Kenneth E. Gray, Jr., Esq., the following is ORDERED: This Court's Prothonotary is DIRECTED to forward a copy of this Order and Appellant's September 19, 2024, pro se application to Kenneth E. Gray, Jr., Esq. See Pa.R.A.P. 121(g); Commonwealth v. Jette, 23 A.3d 1032 (Pa. 2011) (stating that, where appellant is represented by counsel, proper response to any pro se pleading is to refer pleading to counsel); Commonwealth v. Ellis, 626 A.2d 1137 (Pa. 1993) (disapproving of pro se filings by counseled appellants); see also Commonwealth v. Jones, 58 A.3d 751 (Pa. 2012) (per curiam order) (instructing courts that all pro se pleadings filed by represented appellants must be forwarded to counsel, with no further action to be taken by court unless counsel files motion or other document).		
October 24, 2024	Pro Se Document Received But Not Filed	Appellant	Roth, Miriam
Comment:	Request to Remove Attorney from Record		
November 6, 2024	Pro Se Document Received But Not Filed	Appellant	Roth, Miriam
Document Name:	Appellant's Brief		
November 6, 2024	Jette Letter sent to Counsel		Superior Court of Pennsylvania
February 26, 2025	Order		Per Curiam
Comment:	Upon consideration of the October 24, 2024, "Request to Remove Attorney of Record Kenneth Gray," docketed as "Pro Se Document Received but not Filed," submitted by Appellant Miriam Roth, and noting no response thereto, Appellant's request to remove Kenneth Gray, Esq. as counsel and to proceed pro se is GRANTED. The Prothonotary is DIRECTED to remove Appellant Miriam Roth's current counsel of record, Kenneth Gray, Esq., and cause the appellate docket sheet to reflect that Appellant Miriam Roth is pro se. Upon consideration of Appellant's attempt to file a brief on November 6, 2024, and noting that the Prothonotary received the brief but did not file it due to Appellant's representation by counsel, Appellant is DIRECTED to refile the brief within seven (7) days of the date of docketing of this Order. Failure to comply with the directives in this Order may result in the appeal being dismissed without further notice.		
July 3, 2025	Appellant's Brief Filed	Appellant	Roth, Miriam
Document Name:	Filed late		

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
July 23, 2025	Application for Relief		
		Appellant	Roth, Miriam
Document Name:	Application to File Amended Statement of Errors		
August 5, 2025	Submitted on Brief		
			Eastern District Filing Office
August 5, 2025	Application for Extension of Time to File Brief - First Request		
		Appellee	Perkins, Edward
August 5, 2025	Order Granting Application for Extension of Time to File Appellee Brief		
			Per Curiam
Comment:	Granted until 9/4/25		
August 25, 2025	Answer to Application for Relief		
		Appellee	Perkins, Edward
August 27, 2025	Other		
		Appellee	Perkins, Edward
Document Name:	AFFIDAVIT OF SERVICE		
August 27, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	REPLY OF APPELLANT TO RESPONSE		
Comment:	REPLY OF APPELLANT TO RESPONSE OF APPELLEE TO APPLICATION TO AMEND 1925(b) STATEMENT OF ERRORS COMPLAINED OF ON APPEAL		
August 27, 2025	Application to Strike		
		Appellant	Roth, Miriam
Document Name:	MOTION TO STRIKE APPELLEES		
Comment:	MOTION TO STRIKE APPELLEES RESPONSE TO APPELLANTS REQUEST TO FILE AMENDED STATEMENT of ERRORS 1925(b) for Late Response		
August 28, 2025	Application to Strike		
		Appellant	Roth, Miriam
Document Name:	APPLICATION TO STRIKE LATE		
Comment:	APPLICATION TO STRIKE LATE RESPONSE to APPELLANTS REQUEST FOR LEAVE TO FILE AMENDED STATEMENT OF ERRORS 1925(b)		
August 28, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	OPP TO APPELLEE'S APPLICATION FOR STRIKE		
Comment:	OPPOSITION TO APPELLEE'S APPLICATION FOR EXTENSION OF TIME TO FILE RESPONSE TO APPEAL BRIEF & APPLICATION TO STRIKE APPELLEE'S APPEAL BRIEF RESPONSE FILED AFTER 8/4/2025		
August 29, 2025	Appellee's Brief Filed		
		Appellee	Perkins, Edward

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
August 29, 2025	Appellee's Supplemental Reproduced Record Filed	Appellee	Perkins, Edward
Document Name:	Vol, 1, 2, & 3		
September 2, 2025	Application to Quash Appeal	Appellee	Perkins, Edward
September 2, 2025	Application to Amend	Appellee	Perkins, Edward
September 2, 2025	Other	Appellee	Perkins, Edward
Comment:	CERTIFICATE OF SERVICE OF APPELLEE'S APPLICATION TO AMEND SUPPLEMENTAL REPRODUCED RECORD TO INCLUDE VOLUME 2		
September 3, 2025	Answer to Application to Quash Appeal	Appellant	Roth, Miriam
September 3, 2025	Answer to Application to Strike	Appellee	Perkins, Edward
September 4, 2025	Paper Version of PACFiled Document Received	Appellee	Perkins, Edward
Document Name:	Appellee's Brief and Supplemental Reproduced Record Vol 1&3		
Comment:	Awaiting 2 copies of Vol. 2		
September 8, 2025	Application for Relief	Appellant	Roth, Miriam
Document Name:	APPLICATION FOR LEAVE TO FILE SUPPLEMENTAL LIST OF		
Comment:	APPLICATION FOR LEAVE TO FILE SUPPLEMENTAL LIST OF ERRORS OCCURRING AFTER RECORD CERTIFICATION		
September 9, 2025	Answer to Application for Relief	Appellee	Perkins, Edward
Document Name:	RESPONSE OF APPELLEE		
Comment:	RESPONSE OF APPELLEE EDWARD L. PERKINS, TRUSTEE TO APPELLANT ROTH'S APPLICATION TO FILE SUPPLEMENTAL LIST OF ERRORS OCCURRING AFTER RECORD CERTIFICATION		
September 10, 2025	Application to Strike	Appellant	Roth, Miriam
September 10, 2025	Other	Appellant	Roth, Miriam
Document Name:	MEMORANDUM OF LAW IN SUPPORT OF		
Comment:	MEMORANDUM OF LAW IN SUPPORT OF EMERGENCY MOTION TO STRIKE		
September 11, 2025	Application for Relief	Appellant	Roth, Miriam
Comment:	Second Applic. For Leave To File Supplemental List Of Errors Occurring After Record Certification.		

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
September 13, 2025	Application to Strike	Appellant	Roth, Miriam
September 13, 2025	Other Document Name: Proposed Order	Appellant	Roth, Miriam
September 15, 2025	Appellant's Reply Brief	Appellant	Roth, Miriam
September 15, 2025	Answer to Application to Strike	Appellee	Perkins, Edward
September 15, 2025	Answer to Application to Strike	Appellee	Perkins, Edward
September 23, 2025	Application for Relief Document Name: APPELLANT'S NOTICE OF FOUR FATAL JURISDICTIONAL DEFECTS	Appellant	Roth, Miriam
September 23, 2025	Other Document Name: Proposed Order	Appellant	Roth, Miriam
September 28, 2025	Other Document Name: APPELLANT'S CONSOLIDATED REPLY TO APPELLEE'S RESPONSE TO THE MOTIONS TO STRIKE	Appellant	Roth, Miriam
September 28, 2025	Other Document Name: Proposed Order	Appellant	Roth, Miriam
September 28, 2025	Other Document Name: Proof of Service	Appellant	Roth, Miriam
September 29, 2025	Answer to Application to Quash Appeal	Appellant	Roth, Miriam
September 29, 2025	Other Document Name: Proposed Order	Appellant	Roth, Miriam
September 29, 2025	Other Comment: REPLY TO APPELLEE'S RESPONSE TO APPELLANT'S SECOND APPLICATION FOR LEAVE TO FILE SUPPLEMENTAL LIST OF ERRORS OCCURRING AFTER RECORD CERTIFICATION	Appellant	Roth, Miriam
September 29, 2025	Other Document Name: Proposed Order	Appellant	Roth, Miriam

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
September 29, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	Certificate of Service		
September 30, 2025	Application to Strike		
		Appellant	Roth, Miriam
Comment:	APPLICATION TO STRIKE APPELLEE'S BRIEF AND ALL APPELLEE FILINGS FOR FAILURE TO SERVE AND FOR SANCTIONS FOR VEXATIOUS AND BAD-FAITH CONDUCT.		
October 3, 2025	Paper Version of PACFiled Document Received		
		Appellant	Roth, Miriam
October 5, 2025	Application for Emergency Relief		
		Appellant	Roth, Miriam
October 5, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	Certificate of service		
October 5, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	Proposed Order		
October 8, 2025	Application for Relief		
		Appellant	Roth, Miriam
Comment:	APPELLANT'S MOTION FOR SUMMARY DISPOSITIONAND IMMEDIATE VACATUR OF ALL VOID ORDERS		
October 8, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	Proposed Order		
October 8, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	Certificate of Service		
October 9, 2025	Notice of Overdue Paper Copies		
			Superior Court of Pennsylvania
Document Name:	Appellant's Reply Brief		
October 10, 2025	Application for Relief		
		Appellant	Roth, Miriam
Document Name:	APPLICATION FOR LEAVE TO FILE NOTICE OF SUPPLEMENTAL		
October 14, 2025	Application for Relief		
		Appellant	Roth, Miriam
Comment:	MOTION TO GRANT RELIEF SOUGHT IN NOTICE OF JURISDICTIONAL DEFECTS AS UNCONTESTED		
October 14, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	Attachment to Motion for Relief		

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
October 15, 2025	Deferred to Time of Disposition		Per Curiam
Comment:	Upon consideration of the September 2, 2025, "Motion to Dismiss/Quash the Appeal of Miriam Roth," docketed as "Application to Quash Appeal," filed by Appellee Edward L. Perkins, Trustee of the Mitchell E. and Karlie M. Roth Irrevocable Trust, and the answer thereto, the application is DEFERRED to the Merits Panel assigned to the appeal. Upon consideration of Appellee's September 2, 2025, "Application to Amend Appellee's Supplemental Reproduced Record to Include Volume 2," docketed as "Application to Amend," and noting no response thereto, the application to amend is DENIED. Appellee's application consists only of a cover page. Appellee failed to include a request for relief or explanation of why supplementation of his existing reproduced record is necessary. All other pending applications are DENIED. The Prothonotary is DIRECTED to list this appeal on the next available Panel.		
October 16, 2025	Application to Amend	Appellee	Perkins, Edward
Comment:	APPLICATION TO AMEND APPELLEE'S SUPPLEMENTAL REPRODUCED RECORD TO INCLUDE VOLUME 2		
October 16, 2025	Answer to Application to Amend	Appellant	Roth, Miriam
October 17, 2025	Application for Correction	Appellant	Roth, Miriam
October 17, 2025	Paper Version of PACFiled Document Received	Appellant	Roth, Miriam
Document Name:	Application for Relief		
October 17, 2025	Paper Version of PACFiled Document Received	Appellant	Roth, Miriam
Document Name:	Application for Relief		
October 17, 2025	Paper Version of PACFiled Document Received	Appellant	Roth, Miriam
Document Name:	Certificate of Service		
October 23, 2025	Notice of Overdue Paper Copies		Superior Court of Pennsylvania
Document Name:	Appellant's Replyy Brief		
October 23, 2025	Application for Relief	Appellant	Roth, Miriam
October 23, 2025	Other	Appellant	Roth, Miriam
Document Name:	Proposed Order		
Comment:	Proposed order		

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
October 27, 2025	Application for Relief		
		Appellant	Roth, Miriam
Comment:	APPELLANT'S MOTION FOR SUMMARY DISPOSITION AND SANCTIONS BASED ON APPELLEE'S UNCONTESTED, CONCLUSIVE JUDICIAL ADMISSIONS AND FRAUDULENT CONDUCT		
October 28, 2025	Paper Version of PACFiled Document Received		
		Appellant	Roth, Miriam
Document Name:	Appellant's Motion for Summary Disposition and Proposed Order		
October 28, 2025	Paper Version of PACFiled Document Received		
		Appellant	Roth, Miriam
Document Name:	Appellant's motion for summary disposition and sanctions		
October 28, 2025	Paper Version of PACFiled Document Received		
		Appellant	Roth, Miriam
Document Name:	Answer to Application to Amend		
October 30, 2025	Answer to Application for Relief		
		Appellee	Perkins, Edward
Comment:	RESPONSE OF APPELLEE EDWARD L. PERKINS TRUSTEE TO MOTION FOR SUMMARY DISPOSITION AND SANCTIONS OF APPELLANT MIRIAM ROTH		
October 30, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	Reply of Appellant Miriam Roth to the Appellee's Response to Motion for Summary Disposition and Sanc		
Comment:	REPLY OF APPELLANT MIRIAM ROTH TO APPELLEE'S RESPONSE TO MOTION FOR SUMMARY DISPOSITION AND SANCTIONS		
October 30, 2025	Other		
		Appellant	Roth, Miriam
Document Name:	Attachments to Reply		
October 30, 2025	Other		
		Appellant	Roth, Miriam
November 7, 2025	Order Granting Application to Amend		
			Per Curiam
Comment:	Upon consideration of the October 16, 2025, "Application to Amend Appellee's Supplemental Reproduced Record to Include Volume 2," docketed as "Application to Amend," filed by Appellee Edward L. Perkins, Trustee, and the answer thereto, the application to amend is GRANTED. Appellee shall file the proposed corrected Volume 2 of his reproduced record within five (5) days of the date of docketing of this Order. All other pending applications are DENIED. Pro se Appellant Miriam Roth is cautioned that the filing of further frivolous and/or repetitive applications for relief will delay consideration of the appeal and may result in the imposition of sanctions, including, but not limited to, a directive for this Court's Prothonotary to reject any further filings by Appellant absent permission of this Court.		

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
November 10, 2025	Paper Version of PACFiled Document Received		
		Appellee	Perkins, Edward
Document Name:	Appellee Supplemental Reproduced Record Vol. 2		
November 13, 2025	Notice of Overdue Paper Copies		
			Superior Court of Pennsylvania
Document Name:	Appellant's Reply Brief		
December 8, 2025	Submission Letter Sent		
			Superior Court of Pennsylvania
April 1, 2026	Affirmed		
			Lazarus, Anne E.
Comment:	Motion to quash denied.		
April 9, 2026	Application for Reargument		
		Appellant	Roth, Miriam
Comment:	MOTION FOR RECONSIDERATION FOR FAILURE TO JOIN INDISPENSABLE BENEFICIARIES RENDERING ALL ORDERS VOID AB INITIO		
April 9, 2026	Notice of Challenge to Constitutionality		
		Appellant	Roth, Miriam
April 10, 2026	Notice of Challenge to Constitutionality		
		Appellant	Roth, Miriam
April 13, 2026	Application for Relief		
		Appellant	Roth, Miriam
Document Name:	MOTION FOR LEAVE TO PROCEED WITHOUT FILING PAPER COPIES OF THE EXHIBITS to the APPELLAT		
Comment:	MOTION FOR LEAVE TO PROCEED WITHOUT FILING PAPER COPIES OF THE EXHIBITS to the APPELLATE BRIEF and the REPRODUCED RECORD		
April 13, 2026	Application for Relief		
		Appellant	Roth, Miriam
Document Name:	MOTION FOR LEAVE OF COURT TO FILE SUPPLEMENTAL		
April 13, 2026	Application for Mandamus - Ancillary Filing		
		Appellant	Roth, Miriam
April 14, 2026	Order Denying Application for Relief		
			Per Curiam
Comment:	And now, this 14th day of April, 2026, it is hereby ordered that the Appellant's application to file a supplemental brief in support of her application for reargument is denied.		

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DOCKET ENTRY

Filed Date	Docket Entry / Representing	Participant Type	Filed By
April 15, 2026	Order		Per Curiam
Comment:	And now, this 14th day of April, 2026, it is hereby ordered that the application for mandamus filed by Miriam Roth Mandel is denied. Section 741 of the Judicial Code provides that this Court "shall have no original jurisdiction, except in cases of mandamus and prohibition to courts of inferior jurisdiction where such relief is ancillary to matters within its appellate jurisdiction[.]" 42 Pa.C.S.A. § 741. "Section 741 vests the Superior Court with jurisdiction to issue a writ of mandamus or prohibition only where an appeal properly within its appellate jurisdiction is pending before that court and where the issuance of such a writ is necessary to protect that court's appellate jurisdiction." Mun. Publications, Inc. v. Court of Common Pleas of Philadelphia Cnty., 489 A.2d 1286, 1288 (Pa. 1985)		
April 22, 2026	Application for Relief	Appellant	Roth, Miriam
Comment:	Motion for Leave to Proceed without Filing Paper Copies of the Exhibits to the Appellate Brief and the Reproduced Record.		
April 22, 2026	Application for Writ of Mandamus	Appellant	Roth, Miriam
April 24, 2026	Order Denying Application for Relief		Per Curiam
Comment:	And now, this 23rd day of April, 2026, it is hereby ordered that the Appellant's "Motion for Leave to Proceed Without Filing Paper Copies of the Exhibits to the Appellate Brief and the Reproduced Record," filed on April 22, 2026, is denied.		

SESSION INFORMATION

Journal Number: J-S44011-25
Consideration Type: Submit Panel
Listed/Submitted Date: December 22, 2025

Panel Composition:

The Honorable Anne E. Lazarus	President Judge
The Honorable Alice B. Dubow	Judge
The Honorable Megan Sullivan	Judge

DISPOSITION INFORMATION

Final Disposition:	Yes		
Related Journal No:	J-S44011-25	Judgment Date:	April 1, 2026
Category:	Decided	Disposition Author:	Lazarus, Anne E.
Disposition:	Affirmed	Disposition Date:	April 1, 2026
Disposition Comment:	Motion to quash denied.		
Dispositional Filing:	**Memorandum**	Filing Author:	Lazarus, Anne E.
Filed Date:	4/1/2026 12:00:00AM		

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REARGUMENT / RECONSIDERATION / REMITTAL

Filed Date: April 9, 2026
Disposition:
Disposition Date:

Record Remittal:

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